

25STCV13572 25STCV13572

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Case Number: 25STCV13572 Hearing Date: July 20, 2026 Dept: 510

No.

11 - Kyle D Edwards v. Hyundai Motor America

Defendant Hyundai Motor America's Motion
to Compel Binding Arbitration and Stay Action

Defendant

Hyundai Motor America moves to compel arbitration of this action by Plaintiff Kyle D Edwards. Defendant also requests that the Court stay proceedings pending arbitration.

Request

for Judicial Notice

Defendant requests judicial notice of Plaintiff's complaint. This document is subject to judicial notice as a court record under Evidence Code section 452(d). Defendant's request for judicial notice is granted.

Existence

of Valid Agreement

The

party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (CCP § 1281.2.) It can meet the "initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." (Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060.) "At this step, a

movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in' " California Rules of Court, rule 3.1330. (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

Defendant

relies on an arbitration provision found in the "Owner's Handbook & Warranty Information," which was allegedly given to Plaintiff at the time he purchased the subject vehicle.

The arbitration provision provides, in relevant part:

If

you purchased or leased your Hyundai vehicle in the State of California, you and we each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, use of your vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims) . . . shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.

(Ameripour Decl., Ex. 2, at p. 13.)

Defendant

presents insufficient evidence that the Warranty Booklet constitutes an enforceable contract under basic principles of contract formation. First, the Warranty Booklet, and arbitration agreement therein, are unsigned by Plaintiff. (See Ameripour Decl., Ex. 2.) In addition, Defendant presents no evidence that Plaintiff was even aware of the existence of the warranty booklet. Thus, Defendant fails to show that the arbitration provision contained in the Warranty Booklet constitutes an offer to which Plaintiff actually assented when purchasing the vehicle. (See Leslie v. Brown Bros. Inc. (1929) 208 Cal. 606, 621 [offer cannot be turned into agreement merely because the person to whom it is made makes no reply, even where offer states that silence will be taken as consent]; see also Norcia v. Samsung Telecommunications America, LLC (9th Cir. 2017) 845 F.3d

1279, 1291 ["an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious"].) Without such evidence, Defendant fails to meet its burden of showing the existence of a valid agreement between the parties.

Because

the Court does not find that there was a valid agreement between the parties, the Court need not consider whether the agreement was unconscionable.

Disposition

Defendant

Hyundai Motor America's motion to compel arbitration is denied.